

#	Case Name	Tentative
	2023-01329371	The court hereby VACATES the 7/18/25 order striking Shipjoy’s cross-complaint and first amended answer to the first amended complaint, and SETS ASIDE Shipjoy’s default entered on 7/18/25 and the default judgment entered on 10/13/25. Shipjoy has brought this motion within a reasonable time and has acted diligently in doing so. (See <i>Younessi v. Woolf</i> (2016) 244 Cal.App.4th 1137, 1145 [“reasonable time” means moving party must show diligence in making the motion after discovery of the default].) Shipjoy’s default was entered by the court via a signed minute order on 7/18/25, and the default judgment was entered on 10/13/25. Shipjoy did not receive notice of the entry of its default because the 7/18/25 order was served on its prior counsel and not Shipjoy, who was no longer represented by counsel at that time. (Kim Decl. at Ex. D [clerk’s cert. of service]; D. Daniel Decl. ¶ 7; Y.I. Daniel Decl. ¶ 7.) Plaintiff OCMH, Inc. later mail-served Shipjoy with its default prove-up package (including its request for default judgment) on 9/11/25 (see ROA Nos. 150, 152), and Shipjoy retained new counsel shortly thereafter on 9/30/25. (D. Daniel Decl. ¶ 10.) Shipjoy’s new counsel then sought a stipulation setting aside the default/default judgment, but plaintiff refused. (Kim Decl. ¶¶ 12-13.) Subsequently, Shipjoy’s managers/owners were delayed in bringing about this motion due to certain religion observations (see D. Daniel Decl. ¶ 12; Y.I. Daniel Decl. ¶ 12), but brought this motion not too long after (initially on 11/6/25), less than a month after the default judgment was entered. Shipjoy has also adequately demonstrated its default and the default judgment were the result of mistake, surprise, and/or excusable neglect. (See Code Civ. Proc., § 473, subd. (b); <i>Kramer v. Traditional Escrow, Inc.</i> (2020) 56 Cal.App.5th 13, 28; see also <i>Johnson v. Pratt & Whitney Canada, Inc.</i> (1994) 28 Cal.App.4th 613, 623-624 [striking of answer not necessarily equivalent to entering default]; D. Daniel Decl. ¶¶ 7-8 [no notice that its default might be entered at the 7/18/25 OSC hearing; no notice that its default was entered on 7/18/25].) Shipjoy has also properly submitted copy of its proposed answer and cross-complaint, consisting of Shipjoy’s operative answer and cross-complaint previously filed in this action on

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		10/9/24 and 4/23/24, respectively. (See Kim Decl. ¶¶ 4-5, Exs. B-C.) Requests for judicial notice. Shipjoy's and plaintiff OCMH, Inc.'s requests for judicial notice are GRANTED. (See Evid. Code, § 452, subd. (d).) The court sets a status conference regarding the appeal for September 18, 2026 at 9:00 a.m. in Department C28. Shipjoy shall give notice of this ruling.
58.	Wardlow v. Evans Roofing Co., Inc. 2026-01555475	Defendant Evans Roofing Co., Inc.'s petition / motion to compel arbitration is GRANTED. (Code Civ. Proc., § 1281.2 [authorizing motion to compel arbitration].) Plaintiff Zachary Wardlow shall submit his claims against defendant to binding arbitration pursuant to their agreement. This action is stayed pending completion of arbitration. (Code Civ. Proc., § 1281.4.) The court sets a status conference re: binding arbitration for February 19, 2027 at 9:00 a.m. in Department C28. Five days before the status conference, the parties are ordered to submit a joint status report. Defendant met its burden to show a written arbitration agreement exists that covers plaintiff's claims. (<i>Rosenthal v. Great Western Fin. Securities Corp.</i> (1996) 14 Cal.4th 394, 413 ["Because the existence of the agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the evidence"]; <i>Gamboa v. Northeast Community Clinic</i> (2021) 72 Cal.App.5th 158, 164-166 [same, plus three-step process where signature disputed, not present here]; Ex. A to Petition [executed agreement requiring arbitration of "any claim, dispute, and/or controversy concerning any aspect of my employment ... that either I or the Company ... may have against each other which would otherwise require or allow resort to any court or other governmental dispute resolution forum arising from, related to, or having any relationship or connection whatsoever with my seeking employment with, employment by, or other association with the Com-pany, whether based on tort, contract, statutory, or equity, or otherwise," with exceptions not present here]; Fleischman Decl., ¶¶ 2, 5, 6 [employment relationship, authenticating arbitration agreement].) Plaintiff also fails to show that arbitration should be denied on unconscionability grounds. (<i>Armendariz v. Foundation Health</i>